

5. Where the defendant is a servant of the person who purchased the article under a warranty or invoice he shall be entitled to rely on the provisions of this schedule in the same way as his employer would have been entitled to do if he had been the defendant, provided that the servant further proves that he had no reason to believe that the article was not cream.

6. Every person who wilfully applies to an article in any proceedings under this Act a warranty or invoice given in relation to any other article, shall be guilty of an offence against this Act.

7. Every person who, in respect of artificial cream sold by him as principal or agent, gives to the purchaser a false warranty in writing, shall be guilty of an offence against this Act, unless he proves to the satisfaction of the court that when he gave the warranty he had reason to believe that the statements or descriptions contained therein were true.

8. Where the defendant in a prosecution under this Act has been discharged under the provisions of this schedule relating to warranties, any proceedings under this schedule for giving the warranty relied on by the defendant in the prosecution, may be taken as well before a court having jurisdiction in the place where the contravention of this Act took place as before a court having jurisdiction in the place where the warranty was given.

CHAPTER 33.

An Act to enable highway authorities and the owners of bridges carrying public carriage roads to make agreements with respect to the maintenance, improvement, reconstruction and transfer of such bridges, and of the approaches thereto and the roads carried thereby; to empower the Minister of Transport, in the absence of any such agreement, to make orders with respect to the matters aforesaid and for purposes incidental to the making of such agreements and orders.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

Application
of Act.

1.—(1) The bridges to which this Act applies are bridges or viaducts by which a public carriage road is carried over any railway, canal, river, creek, water-course, marsh or other place where water flows or is collected, or any ravine or other depression, not being bridges or viaducts for the maintenance and repair of which a highway authority is responsible.

(2) The powers conferred by this Act on a highway authority shall be exercisable—

- (a) in the case of a bridge in a county borough, by the council of the borough;
- (b) in the case of a bridge in the City of London, by the common council of the City;
- (c) in the case of a bridge in an urban district, if the road at each end of the bridge is vested in the county council, and in the case of a bridge in a rural district, by the council of the county in which the bridge is situate;
- (d) in the case of any other bridge, either by the council of the county in which the bridge is situate, or by the council of the metropolitan borough or urban district in which the bridge is situate, or by such councils jointly.

Where a bridge is situate partly in one area and partly in another, any council may exercise the powers of a highway authority in relation to the bridge if the council could have exercised those powers in relation thereto had the bridge been situate wholly within the area for which the council acts.

For the purposes of this subsection, “bridge” includes the road carried thereby and the approaches thereto.

Powers of
highway
authorities
and bridge
owners to
enter into
agreements.

2.—(1) A highway authority may agree with the owner of a bridge—

- (a) for the payment by the highway authority of contributions towards the cost of the maintenance, improvement, or reconstruction of the bridge, or the road carried thereby, or the approaches thereto;
- (b) for the transfer to the highway authority, on such terms as may be agreed, of the responsibility

for the maintenance and improvement of the road carried by the bridge or the approaches thereto;

- (c) for the transfer to the highway authority, on such terms as may be agreed, of the property in the bridge and the road carried thereby and the approaches thereto, and of all or any rights and obligations attaching to such bridge, road or approaches;

and it shall be lawful for the owner of the bridge, notwithstanding that the bridge was constructed under statutory powers, to enter into and carry into effect any such agreement.

(2) Where any such agreement provides for the transfer to the highway authority of any rights or obligations attaching to a bridge, then, as from the date of the transfer, it shall be lawful for the highway authority to exercise the rights, and they shall, to the exclusion of the owner, be subject to the obligations, so transferred.

3.—(1) If the owner of a bridge, or a highway authority, considers that the bridge is or may be, by reason of its construction, position, or state of repair, dangerous or unsuitable for the requirements of road traffic as then existing or the anticipated development thereof, or that the responsibility for the maintenance and improvement of the road carried by the bridge or the approaches thereto should for any reason be transferred from the owner to a highway authority, the owner or authority may apply to the Minister for an order to provide for the reconstruction or improvement or maintenance of the bridge or road carried thereby or the approaches thereto.

Power to
make orders
as to recon-
struction,
main-
tenance, &c.
of bridges.

(2) Subject to the provisions of this Act, the Minister on any such application, after consultation with the owner of the bridge and every highway authority entitled to exercise with respect thereto the powers conferred by this Act and after holding an inquiry, if either the owner or any such highway authority requests him in writing to hold an inquiry, may make an order, and may by the order—

- (a) require the execution of such works of reconstruction or improvement either by the owner

or by a highway authority as may be specified in the order;

- (b) determine and direct by whom the bridge and the road carried thereby and the approaches thereto shall be maintained;
- (c) in the case of a swing bridge, determine and direct by whom and in what manner it shall be operated, so, however, that in the case of a swing bridge crossing a canal, he shall not direct that the bridge shall be operated otherwise than by the owner of the canal unless he is satisfied, after considering any representations made to him by the owner, that the facilities for traffic on the canal will not be prejudiced thereby;
- (d) provide for the transfer to and vesting in a highway authority of the property in the bridge or the road carried thereby or the approaches thereto and of all or any rights and obligations attaching thereto;
- (e) modify, so far as he considers necessary to give effect to the order, any statutory provisions applicable to a bridge other than the provisions of any general Act; so, however, that, in the case of a bridge crossing a railway or a canal, he shall not, without the consent of the owner of the railway or canal, modify any provisions relating to the headway of that bridge or the width of the canal and, in the case of a swing bridge, he shall not modify any provisions relating to precedence of traffic;
- (f) make such incidental, consequential, and supplemental provisions as may appear necessary or proper for the purposes of the order, including such provisions authorising the acquisition of land or easements or the construction of works as could have been made under paragraph (d) of subsection (1) of section three of the Ministry of Transport Act, 1919, for the purposes specified in that paragraph.

9 & 10
Geo. 5. c. 50.

(3) Before making any order under this section with respect to a bridge crossing tidal lands, the Minister shall consult with the Board of Trade, and any order made

by him with respect to such bridge shall include such provisions as the Board of Trade may deem necessary.

(4) Before making an order under this section for the reconstruction or improvement of a bridge, the Minister shall take into consideration the desirability of special facilities or accommodation being provided for carrying across the bridge the mains, pipes, cables or wires of public utility undertakings:

Provided that, in any case where the provision of facilities or accommodation greater than those available in the bridge before reconstruction or improvement would increase the cost of the reconstruction or improvement, he shall have regard to the amount of any contribution towards such cost which any public utility undertaking may be willing to make.

(5) No order shall be made under this section with respect to any bridge to which any right to take tolls attaches.

(6) The Minister may postpone the date of the operation of an order made under this section in any case where it appears to him that, owing to the number or nature of the orders and applications affecting the same highway authority or bridges belonging to the same owner, the making of an order which would be immediately operative would work hardship to the authority or to the owner.

(7) An order made under this section shall be final and have effect as if enacted in this Act.

4.—(1) An order made under this Act with respect to a bridge owned by a railway company which carries a road over a railway of the company, or carries both a road and a railway of the company, or with respect to a bridge owned by a dock authority, shall not, without the consent of the owners of the bridge, either require works for the reconstruction or improvement of the structure of the bridge to be carried out otherwise than by the owners, or direct the structure of the bridge to be maintained otherwise than by the owners, or transfer the property in the structure of the bridge to a highway authority, or, in the case of a swing bridge, direct the bridge to be operated otherwise than by the owners.

Provisions
as to bridges
of railway
and canal
companies
and dock
authorities.

(2) In the case of a bridge owned by a railway company or a canal company and crossing a railway or

canal of the company, or owned by a dock authority and crossing any railway, lock, passage or other work of the dock authority, nothing in any order made under this Act shall, without the consent of the owners of the bridge, require the bridge to be altered or reconstructed in such a manner as to necessitate any alteration in the level, or reduction in the width, of that railway, canal, lock, passage or work, or to reduce the headway of the bridge as existing at the date of the order.

(3) An order made under this Act requiring the reconstruction of a bridge crossing a canal, or of the approaches to such a bridge, shall, unless the owner of the bridge agrees to the contrary, direct the structure of the bridge and the road carried thereby and the approaches thereto to be maintained by a highway authority.

(4) Nothing in this Act or in any order made thereunder shall be construed as authorising the stoppage of traffic on any canal without the consent of the owner thereof, and any highway authority carrying out any works authorised by this Act, or by any order made thereunder, with respect to a bridge crossing a canal shall take such steps as may be necessary to prevent, so far as practicable, any interference with traffic on that canal:

Provided that the consent of the owner of a canal to the temporary stoppage of traffic thereon shall not be unreasonably withheld, and any question whether such consent has been unreasonably withheld shall be determined by the Minister.

Provisions
as to public
utility
under-
takings.

5. Where an order made under this Act provides for the transfer to or vesting in a highway authority of the property in a bridge or the road carried thereby or the approaches thereto, or the responsibility for the maintenance of, or any rights and obligations attaching to, such bridge, road or approaches, any statutory provisions in force in relation thereto for the protection or benefit of any public utility undertaking, shall, except so far as may be otherwise expressly provided by the order after agreement between the parties concerned, remain in force notwithstanding such transfer and vesting, and in relation to any property, responsibilities, rights or obligations so transferred as aforesaid, those statutory provisions shall apply to the highway authority and to

the exercise by them of any powers under or in pursuance of the order in like manner as they applied to, and to the exercise of powers by, the owner of the bridge, road or approaches previously to the transfer.

6.—(1) Where an order has been made under this Act requiring the reconstruction or improvement of a bridge or the road carried thereby or the approaches thereto, or relating to the maintenance of any such bridge, road or approaches, or to the operation of a swing bridge, the expenses of such reconstruction, improvement, maintenance or operation shall be paid either wholly by the owner of the bridge, or wholly by one or more of the highway authorities entitled to exercise with respect to the bridge the powers conferred by this Act, or partly by the owner of the bridge and partly by one or more of the highway authorities, as in default of agreement may be determined by arbitration :

Apportion-
ment of
costs.

Provided that, unless otherwise agreed—

- (a) where the bridge is a bridge crossing a railway or canal of a railway company or of a canal company, or a railway, lock, passage, or other work of a dock authority, any additional expense incurred by the owners of that railway, canal, lock, passage or work by reason of any alteration thereof due to the provisions of the order, not being provisions applied for by the owners for the improvement of their undertaking, shall be defrayed by one or more of the highway authorities ;
- (b) where the bridge is a swing bridge, any additional expense incurred by the owner in relation to the operation of the bridge due to the provisions of the order, not being provisions applied for by the owner for the improvement of his undertaking, shall be defrayed by one or more of the highway authorities ;
- (c) except so far as any additional expense is due to works executed at the instance of the owner of the bridge for the improvement of his undertaking, the owner's share of the expense of the reconstruction, improvement, maintenance or operation shall be an amount equivalent to what would have been the amount of the owner's liability if no such order had been made.

(2) Where the reconstruction or improvement of a bridge crossing a railway or canal of a railway company or of a canal company, or a railway, lock, passage or other work of a dock authority, effected in pursuance of an order made under this Act upon the application of a highway authority has caused the width between the parapets of the bridge, or the width of the approaches thereto, to be increased, any additional expense thereafter incurred in consequence of such increase by the owners of that railway, canal, lock, passage or work in connection with the widening or alteration thereof under the bridge or the approaches thereto shall be defrayed by one or more of the highway authorities; and any question whether any such additional expense has been so incurred or as to the amount thereof shall, in default of agreement, be determined by arbitration.

(3) Where it is determined by agreement or an award that the whole or part of the expenses of reconstruction, improvement, maintenance or operation is to be borne by two or more highway authorities, the amount shall be apportioned between them in such manner as, failing agreement, may be determined by arbitration.

Arbitration,
&c.
52 & 53 Vict.
c. 49.

7.—(1) Where any question is by this Act, or by any order made thereunder, to be referred to arbitration, the Arbitration Act, 1889, shall apply subject to the following modifications, that is to say :—

- (a) the reference shall, unless otherwise agreed, be to a single arbitrator appointed by the President of the Institution of Civil Engineers;
- (b) the arbitrator shall, if so required by any of the parties, state his award, as to the whole or any part thereof, in the form of a special case for the opinion of the High Court.

(2) Where by virtue of an agreement or award under this Act the owner of a bridge is required to contribute to the expenses of a highway authority, the contribution shall, at the option of the owner of the bridge, be either—

- (a) a lump sum; or
- (b) an annual payment of such amount and continuing for such number of years as, in default of agreement, may be determined by arbitration; or

- (c) an annual payment continuing indefinitely of such amount as, in default of agreement, may be determined by arbitration.

(3) Any such lump sum and so much of any such annual payment as represents capital shall be applied by the highway authority for purposes for which capital money is applicable by them, and any question as to what part of any such annual payment represents capital shall be determined by the Minister of Health.

8.—(1) Any expenses incurred by a council under this Act shall be defrayed by the council as part of their expenses as highway authority. Expenses and borrowing.

(2) The payment of expenses by a council under this Act shall be a purpose for which the council may borrow as a highway authority under the enactments applicable to the council as a highway authority.

9.—(1) The Minister may hold inquiries for the purposes of this Act as if those purposes were purposes of the Ministry of Transport Act, 1919, and section twenty of that Act shall have effect accordingly. Inquiries.

(2) Where any inquiry is held under this Act, the Minister may make such order as to the payment of the costs incurred by him in connection with the inquiry as he may think just.

10.—(1) The Minister may make rules in relation to matters preliminary to the making of orders under this Act (including as respects orders which may authorise the acquisition of land or easements, the breaking up of roads, or the construction of works, the publication of notices and advertisements, and the deposit of plans and sections and books of reference to those plans), and the manner in which and the time within which representations or objections are to be made, and to the holding of inquiries. Power to make rules of procedure.

(2) Any rules so made shall be laid before Parliament as soon as they are made and shall have effect as if enacted in this Act :

Provided that, if an Address is presented to His Majesty by either House of Parliament within twenty-one days on which that House has sat next after any such

rules are so laid praying that any such rule may be annulled, His Majesty may annul the rule, and it shall thenceforth be void, but without prejudice to the validity of anything done thereunder.

(3) Where it is proposed by an order made under this Act to authorise the acquisition of land or easements, or the construction of works, the provisions of the Second Schedule to the Ministry of Transport Act, 1919, shall apply in relation to the order in like manner as it applies to orders made under paragraph (d) of subsection (1) of section three of that Act.

Saving for
Manchester
Ship Canal
Company.

11. This Act shall not apply to any bridge owned by the Manchester Ship Canal Company and crossing the Manchester Ship Canal.

Saving for
Weaver
Navigation
Trustees.

12. An order made under this Act with respect to a bridge owned by the Weaver Navigation Trustees shall not, without the consent of the Trustees, either require any reconstruction or improvement of the bridge to be carried out otherwise than by the Trustees, or direct the structure of the bridge to be maintained otherwise than by the Trustees, or transfer the property in the structure of the bridge to a highway authority, or, in the case of a swing bridge, require the bridge to be operated otherwise than by the Trustees.

Saving for
Postmaster-
General.
41 & 42 Vict.
c. 76.

13. For the purposes of section seven of the Telegraph Act, 1878 (which makes provision as to work done in pursuance of special Acts of Parliament which involves alteration in telegraphic lines), any work authorised or required by an order made under this Act shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament, and the owner of a bridge or highway authority carrying out the work shall be deemed to be the undertakers.

Definitions.

14. In this Act, unless the context otherwise requires,—

“Minister” means the Minister of Transport:

“Highway authority” means the council of any county, county borough, metropolitan borough or urban district and the common council of the City of London:

“Bridge” includes the abutments thereof:

“Swing bridge” includes any opening bridge operated by mechanical means:

“Approach” in relation to a bridge includes any road and the works supporting and carrying such road for the maintenance of which the owner of the bridge is responsible and which connect the bridge with a road for the maintenance of which a highway authority is responsible :

“Reconstruction” in relation to a bridge includes the construction of a new bridge and approaches thereto in substitution for the existing bridge and the approaches thereto :

“Canal” includes inland navigation, and the towing-path of a canal shall be deemed to form part thereof :

“Tidal lands” means such parts of the bed, shore or banks of a tidal water as are covered and uncovered by the flow and ebb of the tide at ordinary spring tides, and “tidal water” means any part of the sea or any part of a river, channel, creek, bay or estuary within the flow and ebb of the tide at such tides :

“Dock authority” means the owners of any harbour or dock undertaking established by Act of Parliament :

“Public utility undertaking” means any company or authority which carries on a gas, water, hydraulic power, electricity, tramway, light railway or trolley vehicle undertaking, and “trolley vehicle” has the same meaning as in the Road Transport Lighting Act, 1927 :

17 & 18
Geo. 5. c. 37.

Where a bridge crossing a railway or canal is owned by a railway company or canal company, and the railway or canal is leased to another company, any expression referring to the owner of such bridge, railway, or canal, shall be construed as including a reference to the company to which the railway or canal is leased.

15. This Act shall apply to Scotland subject to the following modifications :— Application
to Scotland.

(a) Subsection (2) of section one of this Act shall not apply and the expression “highway authority” shall mean a county council

or a town council charged with the management and maintenance of the highways in the burgh, and the powers conferred by this Act on a highway authority shall be exercisable in the case of any bridge by the highway authority within whose area the bridge is situated, provided that where any bridge is situated partly in one area and partly in another area, the said powers shall be exercisable by the highway authority of either area or by the highway authorities of the two areas jointly. For the purpose of this provision "bridge" shall include the road carried thereby and the approaches thereto.

- (b) Subsection (1) of section seven of this Act shall not apply, and where any question is by this Act or by any order thereunder to be referred to arbitration, the reference shall be to a single arbiter to be mutually chosen or, failing agreement, appointed by any sheriff having jurisdiction, and the arbiter may, and if so required by any of the parties shall, state in the form of a special case for the opinion of the Court of Session any question of law arising in the course of the arbitration.
- (c) Any reference to the Minister of Health shall be construed as a reference to one of His Majesty's Principal Secretaries of State, and
- (d) The expression "easement" shall mean "servitude."

Short title
and extent.

16.—(1) This Act may be cited as the Bridges Act, 1929, and the Bridges Acts, 1740 to 1815, and this Act, may be cited together as the Bridges Acts, 1740 to 1929.

- (2) This Act shall not extend to Northern Ireland.
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